

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Team # 5	CCRB Case #: 200902120	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/11/2009 6:15 PM	Location of Incident: Utica Avenue and Eastern Parkway; 77th Precinct stationhouse	Precinct: 77	18 Mo. SOL 8/11/2010	EO SOL 8/11/2010	
Date/Time CV Reported Thu, 02/12/2009 8:04 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 02/12/2009 8:04 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Daniel Zollo	05627	919899	077 PCT
3. POM David Afanador	31730	936100	077 PCT
4. POF Nydia Rodriguez	13149	935629	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM David Afanador	Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer David Afanador pointed his gun at § 87(2)(b)	
B.POF Nydia Rodriguez	Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer Nydia Rodriguez pointed her gun at § 87(2)(b)	
C.POM David Afanador	Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer David Afanador used physical force against § 87(2)(b)	
D.SGT Daniel Zollo	Force: At Utica Avenue and Eastern Parkway in Brooklyn, Sergeant Daniel Zollo used physical force against § 87(2)(b)	
E. Officers	Force: At Utica Avenue and Eastern Parkway in Brooklyn, officers used physical force against § 87(2)(b)	
F.POF Nydia Rodriguez	Abuse: At Utica Avenue and Eastern Parkway in Brooklyn, Officer Nydia Rodriguez threatened to arrest Marsh § 87(2)(b)	
G.SGT Daniel Zollo	Discourtesy: At the 77th Precinct stationhouse, Sergeant Daniel Zollo spoke obscenely and/or rudely to § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
H.SGT Daniel Zollo	Abuse: At the 77th Precinct stationhouse, Sergeant Daniel Zollo did not obtain medical treatment for § 87(2)(b)	

Synopsis

On February 11, 2009, at approximately 6:00 p.m., § 87(2)(b) was seated in a van that was parked on Utica Avenue and Eastern Parkway in Brooklyn. Also present in his car was § 87(2)(b). Sergeant Daniel Zollo, Officer David Afanador, and Officer Nydia Rodriguez, approached § 87(2)(b) with the intention of issuing him a parking summons. § 87(2)(b) attempted to flee the scene by driving away, prompting Officer Afanador and Officer Rodriguez to draw their guns and point them at § 87(2)(b) through the front windshield of his vehicle (Allegation A and Allegation B) and Sergeant Zollo to break the driver's side window. § 87(2)(b) exited the van, allowing Officer Afanador and Officer Rodriguez to enter the van through the passenger door. § 87(2)(b) alleged that Officer Afanador used his gun to strike him on the right side of his face by his temple three times and used his feet to kick him from the van (Allegation C) while Sergeant Zollo dragged him out (Allegation D), causing him to fall onto the street. § 87(2)(b) claimed that after he was handcuffed, Sergeant Zollo punched him in the head (Allegation D continued) and Officer Afanador struck him an unspecified number of times on an unspecified part of his body (Allegation C continued). Approximately four unidentified uniformed officers responded to the location to aid in the arrest. § 87(2)(b) alleged that the unidentified officers used force against him by twisting his foot, punching him in the head and kicking him as he lay on the ground (Allegation E). § 87(2)(b) who remained at the incident location, approached Officer Rodriguez to ask why he had been arrested. She alleged that Officer Rodriguez threatened to arrest her if she did not leave (Allegation F). § 87(2)(b) was arrested and transported to the 77th Precinct stationhouse for arrest processing. He alleged that when he was in a holding cell, Sergeant Zollo referred to him as a "son of a bitch" and told him that he would not obtain medical treatment for him (Allegation G and Allegation H).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

On February 19, 2009, § 87(2)(b) § 87(2)(b) filed a complaint with the Internal Affairs Bureau (encl. 4A-4B); this complaint was received at the CCRB on February 24, 2009. On March 2, 2009, § 87(2)(b) provided the Civilian Complaint Review Board with a telephone statement (encl. 5) and on March 5, 2009 he provided a sworn statement (encl. 6A-6F) that was identical to his initial and telephone statement, with two exceptions noted below.

On February 11, 2009, at approximately 6:00 p.m., § 87(2)(b) was inside of a van that was parked on Utica Avenue and Eastern Parkway in Brooklyn as he waited for his friend § 87(2)(b) who was making a purchase inside of a nearby restaurant. Although § 87(2)(b) admitted that he has operated an illegal livery van in the past, he denied that he was doing so on the date of incident. § 87(2)(b) also conceded that he was parked in a designated "no standing" zone but indicated that he was behind a line of personal vehicles also parked in this zone. He identified another van, which he indicated was an illegal livery van, which was driven by a male § 87(2)(b) knew only as "§ 87(2)(b)".

§ 87(2)(b) had been parked at the location for approximately ten minutes when § 87(2)(b) re-entered the van. Shortly thereafter, two uniformed police officers arrived on the scene. One officer, who § 87(2)(b) described as a white or Hispanic male, weighing 180 pounds with black hair, approached the passenger's side of § 87(2)(b)'s van. This officer has been identified via investigation as Officer David Afanador. The second officer, who § 87(2)(b) referred to as Sergeant Zollo and described as an "older" white male, 6'0" in height and weighing 170 pounds, approached the driver's side of § 87(2)(b)'s van. § 87(2)(b) also indicated that Sergeant Zollo, whose name he obtained via observation of his

shield during the incident, was dressed in uniform with a white shirt and three blue stripes on his sleeve. This officer has been identified via investigation as Sergeant Daniel Zollo. Officer Afanador asked § 87(2)(b) for his drivers' license and so § 87(2)(b) provided him with his New York State identification, his insurance, and the vehicle registration. As he did so, § 87(2)(b) informed Officer Afanador that his license had been revoked and was therefore not valid for him to drive. Officer Afanador told § 87(2)(b) that he had to speak with his supervisor and then walked to Sergeant Zollo and began to speak with him. As this occurred, "§ 87(2)(b) drove away. Sergeant Zollo yelled out that he had not recorded "§ 87(2)(b) license plate number and became upset.

Approximately two minutes later, Sergeant Zollo and Officer Afanador approached § 87(2)(b)'s vehicle with Sergeant Zollo at the driver's side and Officer Afanador at the passenger's side. Officer Afanador had his gun drawn as he approached the vehicle because they thought that he would flee. § 87(2)(b) however, stated that his vehicle was in park and denied that he had made any attempts to leave the location at this point. When asked whether he had ever placed his vehicle in reverse, § 87(2)(b) affirmed this and explained that he had done so because he was scared. He further stated that he had not intended to put his vehicle in reverse and only did so because a gauge was broken in such a way that the car would reverse when place in park and noted that because he was scared, he did not reverse with ease. § 87(2)(b) stated that the car traveled "not that far," a couple of footsteps," and then assessed the distance as "not even half a block." When asked whether his vehicle made contact with any other vehicles, § 87(2)(b) admitted that his van struck a small vehicle behind him that was out of his rear view.

Officer Afanador pointed his gun at him through the front windshield of his vehicle while Sergeant Zollo un-holstered his gun and used it to bang on the front driver's side window of the van. As Sergeant Zollo banged on the window, he repeatedly yelled at § 87(2)(b) to open the window. When asked why he did not comply with Sergeant Zollo's demands, § 87(2)(b) explained that he did not do so because the passenger's side door was already open and added that he had been trying to open the window—which could be opened and closed automatically with a button at the driver's side of the vehicle—but that Sergeant Zollo had not given him a chance to do so. § 87(2)(b) later stated that Sergeant Zollo only made his request once and alternately stated that the officers never directed him to exit his vehicle. Sergeant Zollo ultimately broke the glass windows on the front driver's side door. In his initial statement to IAB, § 87(2)(b) claimed that Sergeant Zollo broke the car window after he indicated that he was waiting for § 87(2)(b) to return but did not mention that his vehicle traveled any distance during the incident.

As a result of Sergeant Zollo's actions, § 87(2)(b) grew afraid and exited the van. Officer Afanador entered the van through the opened passenger's side door and stood in a hunched position. § 87(2)(b) alleged that Officer Afanador used his gun to strike him on the right side of his face by his temple at least three times. § 87(2)(b) attempted to open the driver's side door to exit. When asked why he was attempting to leave his van, he said that Sergeant Zollo "kept saying, 'Come on out.'" § 87(2)(b) alleged that Officer Afanador literally kicked him out of the van with his feet, causing him to fall to the ground. He alternately stated that Sergeant Zollo dragged him out of the car. § 87(2)(b) was handcuffed almost immediately after falling to the ground. § 87(2)(b) alleged that Sergeant Zollo punched him in the head and that he and Officer Afanador struck him, though he was unable to provide any details about where on his body he was struck or how many times he was struck.

Within a short period of time, approximately four uniformed officers responded to the location. He was unable to describe any of the officers with the exception of a slim Hispanic female. This officer has been identified via investigation as Officer Nydia Rodriguez. § 87(2)(b) alleged that an unidentified uniformed officer was bending his foot, "trying to break his ankle." He also alleged that an unidentified officer punched him in the head a few times but was unable to attribute the allegations to a specific officer because he could not see as he was covering his face and there was glass on the ground. § 87(2)(b) stated that the officers continued to strike him despite the fact that he repeatedly informed them that he could not breathe. Although he did not initially make the allegation, near the conclusion of his statement, § 87(2)(b) alleged that he was kicked by unidentified officers as he lay on the ground. Numerous civilians were present when the incident occurred, including an individual § 87(2)(b) identified as § 87(2)(b).

§ 87(2) [Last name unknown]. As a result of the force used against him, § 87(2)(b) experienced pain to his upper and lower back.

§ 87(2)(b) arrived at the 77th Precinct stationhouse and was placed into a prisoner holding cell. § 87(2)(b) claimed that Sergeant Zollo came to the cell area a total of three times to say mean things to him. He specified that Sergeant Zollo said, “Oh, son of a bitch, you’re not getting no help,” “I hate dollar vans,” “I’m gonna tell them you tried to run me over; I’m charging you with that” and “You can’t make no phone calls, you can’t see no doctor.” § 87(2)(b) said that he told Sergeant Zollo, “I need to see a doctor right now.” He claimed that Sergeant Zollo ignored his response and said, “Shut up. I’m going to say that you tried to run me over” and “Just stay there.”

When § 87(2)(b) was brought before medical personnel at Brooklyn Central Booking, he claimed that the escorting officers informed him that he would not see a judge for several days if he requested medical attention and directed him to refrain from reporting his injuries. § 87(2)(b) therefore did not inform medical personnel of his injuries. The pain in his back, however, caused him to seek medical attention immediately after being released from police custody. When § 87(2)(b) filed his complaint, he reported that he had been treated for internal bleeding. During the sworn statement, § 87(2)(b) affirmed that he had received treatment for internal bleeding and stated that the bleeding was to the top right side of his head. He explained that at the hospital, medical personnel conducted a CAT scan and an MRI examination that revealed the bleeding. However, because he had taken too long to obtain medical attention, it had already started to heal. He added that he sustained lacerations to his face and arms as a result of the broken glass and suffered from random headaches as a result of the force used against him.

§ 87(2)(b) indicated that he spoke with § 87(2)(b) over the telephone while he was in police custody and she informed him that she had attempted to take photographs of the incident but was unable to do so because an unidentified officer had pushed her and told her, “Don’t do that. You’re gonna get arrested, too.”

Results of Investigation

Complainant Statement

§ 87(2)(b)
On February 12, 2009, § 87(2)(b) a § 87(2)(b), filed a complaint with the Civilian Complaint Review Board via the call-processing system (encl. 3A-3C).

Although § 87(2)(b) did not witness the incident herself, she was informed of the incident by a taxi driver who she frequently uses. The driver, whose name she did not know, informed her that on February 11, 2009, at an unknown time, he and another livery cab driver—identified via investigation as § 87(2)(b) § 87(2)(b)—were illegally parked in a bus lane somewhere on Utica Avenue in the 77th Precinct. Officers approached both vehicles. The unidentified driver provided his documentation and was issued a summons, but § 87(2)(b) refused to provide his license and registration and rolled up the window of his vehicle. The officers became “verbally aggressive,” called for assistance, and broke the window of § 87(2)(b) s vehicle. § 87(2)(b) was ultimately removed from his vehicle, handcuffed, and beaten and kicked by eight to ten officers. The unidentified driver informed § 87(2)(b) that at one point, § 87(2)(b) was on the ground in handcuffs as officers kicked him. The unidentified driver did not have any further details.

The unidentified driver informed § 87(2)(b) that he had not filed a complaint about the incident because he did not wish to get involved. On February 25, 2009, the undersigned investigator sent a letter to § 87(2)(b) along with her business card, and asked § 87(2)(b) to inform the unidentified driver that a complaint regarding the incident had been filed and to provide the unidentified driver with the undersigned investigator’s contact information. The undersigned called § 87(2)(b) on March 2, 2009 to follow up and left a voicemail message but § 87(2)(b) never responded (encl. 29B).

Victim Statement

§ 87(2)(b)

§ 87(2)(b) provided a brief telephone statement to the Civilian Complaint Review Board on April 10, 2009 (encl. 8A-8B).

On February 11, 2009, at approximately 6:00 p.m., § 87(2)(b) was seated in the passenger's side of a vehicle parked in a no-standing zone on Utica Avenue and Eastern Parkway in Brooklyn with § 87(2)(b) who she referred to as an "associate" or friend. § 87(2)(b) had just made a purchase at a nearby restaurant and re-entered the vehicle, awaiting the arrival of a third unidentified individual. They had been in the van for approximately five minutes when two uniformed police officers arrived. An officer, who § 87(2)(b) described as a white male, approximately 5'8" in height, possibly with facial hair, approached a van parked in front of their vehicle while a second officer approached, described as a white or Hispanic male, approximately 5'6" in height with a muscular build and dark hair. These officers have been identified via investigation as Sergeant Daniel Zollo and Officer David Afanador, respectively. Officer Afanador then asked § 87(2)(b) for his documentation.

Sergeant Zollo had called Officer Afanador over to the vehicle he was summoning when the van sped away. § 87(2)(b) alleged that Officer Afanador drew his gun and pointed it at § 87(2)(b)'s vehicle while Sergeant Zollo banged on the window with the butt of his gun. § 87(2)(b) stated that she did not know why the officers approached their vehicle in this manner. § 87(2)(b) who § 87(2)(b) described as "scared," put his car in reverse. § 87(2)(b) denied that the vehicle ever moved significantly, though she did note that the vehicle "tapped" the bumper of a vehicle parked behind them.

Sergeant Zollo broke the front driver's side window and opened the driver's side door through the opened window. § 87(2)(b) alleged that Sergeant Zollo then pulled § 87(2)(b) from the vehicle in a manner that caused him to be on the ground, which she noted was covered in glass. She further alleged that Sergeant Zollo used his gun to strike § 87(2)(b) in the head. § 87(2)(b) was then placed into a police vehicle for transport from the scene.

§ 87(2)(b) remained at the location and approached an officer who identified herself as § 87(2)(b)'s arresting officer. § 87(2)(b) described the arresting officer as a Hispanic female with a slim build and dark-colored hair worn in a ponytail; this officer has been identified via investigation as Officer Nydia Rodriguez. § 87(2)(b) asked Officer Rodriguez why § 87(2)(b) was being arrested and whether she could retrieve his property. Officer Rodriguez replied that she did not have the authority to provide any information to § 87(2)(b) nor could she release his property to her. § 87(2)(b) initially stated that Officer Rodriguez pushed her but then clarified that Officer Rodriguez never made physical contact with her and instead directed her to step back and told her that she could be arrested if she did not leave.

When the undersigned investigator informed § 87(2)(b) that she would be listed in the complaint as a victim of a threat of arrest, she said that she did not consider herself to be a victim and did not wish to be associated with the complaint. On April 21, 2009, § 87(2)(b) returned a signed Withdrawal Letter indicating that she was withdrawing the allegations of her own free will and maintained that she had not been coerced into doing so (encl. 30F).

Witness Statement

§ 87(2)(b)

The 77th Holding Pen Roster indicates that § 87(2)(b) was in a holding cell in the stationhouse at the same time as § 87(2)(b) (encl. 23). On September 22, 2009, § 87(2)(b) contacted the undersigned investigator in response to her letters and provided a brief statement in which he stated that he was in a cell by himself for the entirety of his time at the stationhouse and never overheard a conversation between an officer and another prisoner (encl. 9).

Witnesses Not Interviewed

§ 87(2)(b)

The 77th Precinct Holding Pen Roster indicates that there was an additional prisoner in the 77th Precinct holding cells at the same time as § 87(2)(b) identified as § 87(2)(b). Contact information for § 87(2)(b) was obtained from police documentation and Please Call letters were mailed to him on September 3, and September 17, 2009 (encl. 29H). To date, none of the letters have been returned by the United States Postal Service and a check of the Department of Correction inmate locator website on September 17, 2009 indicated that § 87(2)(b) was not currently incarcerated in New York City.

§ 87(2)(b)

In his statement to the CCRB, § 87(2)(b) identified a livery cab driver named § 87(2)(b) [Last name unknown] who was a witness to the incident and provided a mobile phone number for him. The undersigned investigator made five to this number on July 1, July 2, July 6, July 7, and August 12, 2009 and left voicemail messages for § 87(2)(b) however, has never responded to the undersigned investigator's attempts to contact him (encl. 29G-29H).

Police Officer Interviews

Sergeant Daniel Zollo, of the 77th Precinct (Subject Officer)

Sergeant Daniel Zollo, a § 87(2)(b) year old white male, 6'0" in height and weighing 215 pounds with brown hair, has been a member of the New York City Police Department for twelve years. On February 11, 2009, Sergeant Zollo worked in uniform from 5:15 p.m. to 2:12 a.m. the following day and was assigned to the Conditions Unit with Officer Nydia Rodriguez, Officer David Afanador, Officer James Davis, and numerous additional officers whose identities he could not recall.

Sergeant Zollo had several entries in his Memo Book regarding this incident (encl. 14A-14B). At 6:12 p.m., Sergeant Zollo indicated that he was conducting a car stop at the intersection of Utica Avenue and Eastern Parkway. At 6:15 p.m., one arrest was made. At 7:00 p.m., Sergeant Zollo noted that he had arrived at the 77th Precinct stationhouse, and at 9:45 p.m., he was present at § 87(2)(b).

Sergeant Zollo was interviewed at the CCRB on May 20, 2009 (encl. 15A-15C).

On February 11, 2009, at approximately 6:12 p.m., Sergeant Zollo and the other officers assigned to the Conditions Unit were on patrol in a marked van when they approached the intersection of Utica Avenue and Eastern Parkway in Brooklyn. There they observed three illegal livery vans occupying three parking spaces and blocking the pedestrian crossway. Sergeant Zollo and Officer Afanador exited the van and walked to the three vehicles with the intention of conducting car stops while the marked police van drove further down the block to issue a summons to a fourth motorist.

Sergeant Zollo approached the van furthest from the intersection. The investigation has determined that this van was the vehicle driven by § 87(2)(b). When asked how he knew that the vehicles were illegal livery cabs, Sergeant Zollo explained that the spot was notorious for livery cabs. Additionally, § 87(2)(b)'s van had bus decals and the door was open as if awaiting passengers. Sergeant Zollo tapped on the window of § 87(2)(b)'s vehicle and directed him to put the van in park and produce his drivers' license and vehicle registration. § 87(2)(b) who Sergeant Zollo described as "agitated," told him that he did not have this documentation with him and tried to give Sergeant Zollo several summons and TLC violations that had previously been issued to him and said that those were the only documents in his possession. Sergeant Zollo directed § 87(2)(b) to wait. He noted that a female, identified by the investigation as § 87(2)(b) was also present in the van.

Sergeant Zollo approached a second van, issued the same orders, and the second motorist complied. The third motorist, seeing that he was about to be stopped by police, drove from the location before the officers could approach him. Sergeant Zollo issued a summons to the second motorist and allowed the second motorist to leave the scene. Sergeant Zollo intended to take § 87(2)(b) to the 77th Precinct stationhouse in order to determine his identity before releasing him with a summons. Officer Nydia Rodriguez exited the police van and walked towards Sergeant Zollo, momentarily distracting his attention from § 87(2)(b). Sergeant Zollo had begun to speak with Officer Rodriguez when she suddenly exclaimed, "Look out!" As Sergeant Zollo turned around, he observed § 87(2)(b)'s vehicle approximately one foot away from him. Officer Afanador, who had been standing near the front of § 87(2)(b)

§ 87(2)(b)'s vehicle, was also only one foot away from the van. Nonetheless, § 87(2)(b) put his van in reverse and, at a high rate of speed, reversed his car approximately twenty feet. Sergeant Zollo explained that § 87(2)(b)'s actions placed everyone in the vicinity in danger of grave physical injury; it was at this point that he decided to place § 87(2)(b) under arrest.

Sergeant Zollo jumped on the running-board of § 87(2)(b)'s van and told him, "Put the car in park. Do not move." § 87(2)(b) indicated that he would and so Sergeant Zollo got off the running-board to give § 87(2)(b) an opportunity to comply with the orders. Instead, § 87(2)(b) once again reversed his car at a high rate of speed, causing him to crash into a car parked behind him. This car was damaged and the motorist had to go to the hospital for medical attention.

Sergeant Zollo again jumped on the running-board and banged on the window of § 87(2)(b)'s vehicle, telling him to get out. Meanwhile, Officer Afanador and Officer Rodriguez had entered the van from the passenger's side. § 87(2)(b) did not comply with Sergeant Zollo's orders and instead continued to fidget with the gear shifter, causing Sergeant Zollo to believe that § 87(2)(b) intended to put his car in drive, an action that would have placed him as well as the other officers and the numerous civilians in the intersection in danger. Sergeant Zollo stated that he therefore felt as though he had no choice but to break the window of § 87(2)(b)'s vehicle so that he could put the car in park and remove the threat posed by § 87(2)(b). Using his hands, Sergeant Zollo banged once on the window and caused it to break. He denied that he ever used his gun to break the window and added that using his gun to break the window and denied that he drew his weapon at any point during the incident. Sergeant Zollo was uncertain what actions Officers Rodriguez and Afanador were taking at this time. He indicated that he did not see either officer with their guns drawn nor did they ever inform him that they had drawn their weapons. Sergeant Zollo denied that he or another officer used a gun to strike § 87(2)(b) on the head.

§ 87(2)(b) informed the officers that he would exit the vehicle. Through the broken window, Sergeant Zollo grabbed the gear shifter to put the car in park, stepped off the running board, and backed away from the van. Because of the darkly tinted windows, Sergeant Zollo was unable to see what Officer Afanador and Officer Rodriguez were doing inside of the van. Sergeant Zollo stated that he was not involved in physically removing § 87(2)(b) from his van or subduing him and merely "observed" as he was handcuffed.

Officer Afanador, Officer Rodriguez, and approximately five to six unidentified officers dressed in uniform attempted to place § 87(2)(b) in handcuffs. He explained that several of the uniformed officers had been eating in a restaurant in the vicinity when they saw what was happening and came to the scene. Sergeant Zollo stated that he did not know the identities of these officers as they were from an unknown command. § 87(2)(b) refused to be handcuffed and flailed his arms and held his arms underneath him. The officers then had to "wrestle" with him to get his hands behind his back. Sergeant Zollo initially stated that the officers placed § 87(2)(b) on the ground but then stated that § 87(2)(b) threw himself to the ground as he was resisting arrest. The officers grabbed § 87(2)(b)'s hands and forced them behind his back; Sergeant Zollo denied that any additional physical force was used against him. He additionally denied that he observed an officer punch, kick, or otherwise strike § 87(2)(b).

At some point, additional officers from the 77th Precinct responded to the location. § 87(2)(b) was ultimately transported to the 77th Precinct stationhouse for arrest processing. Sergeant Zollo indicated that he did not see § 87(2)(b) after § 87(2)(b) was arrested and believed that she was sent on her way by officers at the scene. Sergeant Zollo went from the scene to the stationhouse to lodge § 87(2)(b). Sergeant Zollo stated that he did not observe any injury to § 87(2)(b). He also denied that § 87(2)(b) ever requested medical attention or that he ever informed § 87(2)(b) that he would not provide him with medical treatment because he had almost run over him. He indicated that he was not made aware that § 87(2)(b) later sought medical treatment. Sergeant Zollo additionally denied using profanity while speaking with him.

As a result of using his hand to break the window, Sergeant Zollo sustained soft tissue injury to the right side of his hand. After the incident, Sergeant Zollo obtained medical treatment at § 87(2)(b) where

he was prescribed an analgesic. Sergeant Zollo took ten days of Line of Duty Leave; he was the only officer injured as a result of this arrest.

Officer David Afanador, of the 77th Precinct (Subject Officer)

Officer David Afanador, a § 87(2)(b) year old white male, 5'8" in height and weighing 200 pounds with brown hair, has been a member of the NYPD for four years. On February 11, 2009, Officer Afanador worked in uniform from 5:00 p.m. to 2:05 a.m. the following morning.

Officer Afanador's Memo Book contained two entries regarding this incident (encl. 16A-16B). At 6:00 p.m., he noted that he performed a vehicle stop at the incident location. Fifty minutes later, he noted that one arrest had been made.

Officer Afanador completed a Line of Duty Witness Statement in connection with the injury sustained by Sergeant Zollo (encl. 17). In the narrative of his handwritten testimony, Officer Afanador wrote that "Sergeant Zollo attempted to break the window of a van while attempting to subdue a perpetrator placing him under arrest. Injury to left hand."

Officer Afanador was interviewed at the CCRB on July 1, 2009 (encl. 18A-18C).

Officer Afanador stated that he alone approached § 87(2)(b)'s vehicle. When he asked § 87(2)(b) for his documentation, § 87(2)(b) produced an expired insurance card and explained that his license had been taken from him by another officer two days prior. Officer Afanador conferred with Sergeant Zollo who directed him to place § 87(2)(b) under arrest for unlicensed operation of a vehicle. They decided to wait until the police van returned to place him in handcuffs and stood in front of § 87(2)(b)'s van.

As they were waiting, § 87(2)(b) reversed his car approximately four feet and then drove forward, attempting to go around the officers. As a result, the vehicle almost made contact with Sergeant Zollo. Officer Afanador un-holstered his gun and pointed it through the windshield at § 87(2)(b) repeatedly ordering him to stop and place the vehicle in park. § 87(2)(b) shouted back that he could not understand what Officer Afanador was saying and then put the car in reverse again, striking a parked vehicle containing a motorist. Officer Afanador stated that he semi-entered the vehicle and, with one foot inside and his gun still drawn, ordered § 87(2)(b) to exit the vehicle. Officer Afanador denied that he ever used his gun to strike § 87(2)(b) and believed he was the only officer with his gun drawn during the incident.

Officer Afanador holstered his gun and fully entered the vehicle, restraining § 87(2)(b) with his left arm and opening the driver's side door with his right. Officer Afanador, with the help of an unidentified officer outside the driver's side door, removed § 87(2)(b) from the vehicle by pushing him out. He could not identify this officer but was certain that he was from another command. Once § 87(2)(b) was out of the vehicle, Officer Afanador had his right arm while the unidentified officer had his left, attempting to place the § 87(2)(b)'s arms behind his back. At this time, between ten and fifteen officers responded to the location to offer assistance. Officer Afanador ordered § 87(2)(b) to the ground but § 87(2)(b) refused to comply. Officer Afanador and the arresting officers then had to force § 87(2)(b) to the ground by pushing on his shoulders. When § 87(2)(b) still did not go to the ground, Officer Afanador punched him several times in his back. The officers were unable to get § 87(2)(b) to the ground until Officer Afanador tripped him. Officer Afanador denied that he kicked § 87(2)(b) struck him in the head, or twisted his leg and further denied that he observed any other officer perform these actions. He estimated that it took approximately one minute to place § 87(2)(b) in handcuffs.

After § 87(2)(b) was handcuffed, Officer Afanador remained at the scene to voucher the vehicle as arrest evidence and to tend to the injured motorist. He denied hearing an officer threaten to arrest a civilian.

Officer Nydia Rodriguez, of the 77th Precinct (Subject Officer)

Officer Nydia Rodriguez, a § 87(2)(b) old Hispanic female, 5'7" in height and weighing 145 pounds with black hair, has been a member of the New York City Police Department for five years. On February 11,

2009, Officer Rodriguez worked in uniform from 5:30 p.m. to 2:05 a.m. the following day and was assigned to Precinct Conditions with Sergeant Zollo and Officer Afanador.

Officer Rodriguez had three entries in her Memo Book regarding this incident (encl. 10A-10C). She noted at 6:05 p.m. that there was a car stop at the corner of Utica Avenue and Eastern Parkway. Ten minutes later, she noted that one male had been arrested and at 6:20 p.m., she indicated that she was present at the 77th Precinct stationhouse with the arrested individual.

Officer Rodriguez, who processed the arrest of § 87(2)(b), completed Arrest Report # § 87(2)(b) and Complaint Report § 87(2)(b) (encl. 11A-11C, 12A-12B). The narrative of these reports states that “At [time and place of occurrence], perpetrator refused to identify himself, engaged in reckless conduct, collided with another motor vehicle, [and] obstructed governmental administration by trying to flee. Upon further investigation, prep was found to have a revoked license with total 27 suspensions (Scofflaws 23 on 13 dates).” § 87(2)(b) was charged with reckless endangerment in the first degree, aggravated unlicensed operation of a motor vehicle, obstructing governmental administration in the second degree, resisting arrest, false impersonation, and disorderly conduct. The arrest report further indicates that physical force was used to restrain, control and/or remove § 87(2)(b).

Officer Rodriguez was interviewed at the CCRB on April 15, 2009 (encl. 13A-13C).

After Sergeant Zollo and Officer Afanador approached § 87(2)(b)'s van, Officer Afanador called her over that she could give them blank summonses. When she neared the van, § 87(2)(b) attempted to flee by driving his van approximately 1.5 feet in the direction of the officers and then reversing approximately 2.0 feet into a car parked behind him.

Officer Rodriguez and Officer Afanador drew their guns and pointed them at § 87(2)(b) because he had already used deadly force against them by attempting to strike them with his vehicle. Sergeant Zollo, who was at the driver's side, produced an asp and, after issuing repeated requests for § 87(2)(b) to exit the vehicle, used the asp to break the vehicle window. Officer Rodriguez and Officer Afanador entered the van and reached in front of § 87(2)(b) to place the van in park. Because there was broken glass, they attempted to open the driver's side door so that Sergeant Zollo would not get injured. In response, § 87(2)(b) pushed them out of the way. She denied that she used a gun to strike him on the head or observed any officer perform this action. When the officers opened the vehicle door, Officer Afanador exited the van, walked to the driver's side, and assisted Sergeant Zollo in pulling § 87(2)(b) by his arms from the vehicle through the front driver's side door.

At approximately the same time that § 87(2)(b) was removed from his vehicle, five to six unidentified officers responded to the location. Although Officer Rodriguez could not identify these officers, she indicated that they had been assigned to foot posts in the vicinity and responded when they saw what was going on. Officer Rodriguez stated that she never used any force against § 87(2)(b) and merely watched as Sergeant Zollo, Officer Afanador, and the foot post officers placed him in handcuffs. She further noted that Sergeant Zollo's contact with § 87(2)(b) was limited. Upon being removed from the vehicle, § 87(2)(b) who was still standing—resisted the officers' initial attempts to place him in handcuffs by flailing his arms, fighting, and screaming. The officers grabbed § 87(2)(b) by his arms and placed him on the ground so that he was on his back with his hands underneath him. When § 87(2)(b) kicked at the officers, the officers turned him onto his chest, which also allowed them to gain control of his hands. Officer Rodriguez stated that the force used against § 87(2)(b) was limited to manual contact and denied that he was beaten with any instruments or kicked as he lay on the ground. She did not observe any officer twist § 87(2)(b)'s leg. Once § 87(2)(b) was handcuffed, he was transported to the 77th Precinct stationhouse and the responding officers left the location.

An unspecified number of civilians gathered to witness the arrest but Officer Rodriguez denied that she spoke with anyone or that anyone approached her. She did not know where § 87(2)(b) went and stated in her CCRB interview that she was still seeking § 87(2)(b) to persuade her to participate in the Grand Jury trial against § 87(2)(b). Officer Rodriguez denied that § 87(2)(b) requested information

regarding § 87(2)(b)'s arrest and denied that she ever threatened to arrest § 87(2)(b) or otherwise informed her that she could be arrested.

At the 77th Precinct stationhouse, Officer Rodriguez processed § 87(2)(b)'s arrest. She indicated that on the date of incident, § 87(2)(b) was not in possession of any vehicle documentation nor did he have a New York State drivers' license as it had been suspended on twenty-five prior occasions and had been revoked.

Officers Not Interviewed

All parties agree that additional officers responded to the incident location and assisted in the handcuffing of § 87(2)(b). The officers, however, disagreed on the identities of the officers. In his statement, Sergeant Zollo indicated that they were officers from a command other than the 77th Precinct who had been eating at a restaurant in the area while Officer Afanador indicated that they were officers from the 77th Precinct stationed at foot posts in the immediate vicinity. § 87(2)(g)

Medical Documentation

Pre-Arrest Screening Form

On February 12, 2009, § 87(2)(b) was assessed by the medical personnel at Brooklyn Central Booking. § 87(2)(b) informed them that he was not sick or injured (encl. 19A-19B).

§ 87(2)(b)

On § 87(2)(b), § 87(2)(b) received medical treatment at § 87(2)(b) (encl. 20A-20H). § 87(2)(b) informed medical personnel that he had been assaulted five days earlier and as a result had sustained injury to his head, face, and upper back. § 87(2)(b) at one point reported that the assault occurred on the street and at another that it occurred at a police stationhouse; he did not specify who used force against him. § 87(2)(b) further informed medical personnel glass was broken in his face and mouth during the assault and reported that he was experiencing bleeding from his rectum. A physical examination revealed mild tenderness in the right frontal area of his head and periorbital area. The clinical impression was listed as multiple contusions to the scalp, face, and back. A CT and radiological examinations of § 87(2)(b)'s head and abdomen yielded no abnormal results. § 87(2)(b) was released on the same day with a prescription for Motrin analgesic.

Police Documentation

AIDED Report – Sergeant Daniel Zollo

Aided Report § 87(2)(b) completed in connection with this incident indicates that Sergeant Zollo sustained an injury to "his hand by breaking the window of a van while attempting to place the perpetrator under arrest" (encl. 21A-21F). The report indicates that Sergeant Zollo was transported to § 87(2)(b) for medical attention.

Officer statements indicated that § 87(2)(b)'s vehicle struck the vehicle of an unidentified civilian, causing the civilian to sustain an unspecified injury that required medical attention. They could not, however, identify this individual. The undersigned investigator submitted a request for any AIDED reports for any civilians who received medical attention in connection with this incident but this request yielded negative results (encl. 29I, 31H).

77th Precinct Command Log

The 77th Precinct Command Log contains one entry pertaining to the arrest of § 87(2)(b) which lists his physical / mental condition as "apparently normal" (encl. 22).

Prisoner Holding Pen Roster

The 77th Precinct Holding Pen Roster indicates that on February 11, 2009, § 87(2)(b) was placed in holding pen at 6:25 p.m. where prisoner § 87(2)(b) was already present. At 7:34 p.m., prisoner § 87(2)(b) was placed into the holding cell (encl. 23).

Sprint Communications Report

The undersigned investigator submitted two requests for a Sprint Communications Report connected to this incident but both requests were returned with negative results (encl. 29I, 31B, 31H).

Status of Criminal Court Case

As of the writing of this report, § 87(2)(b)'s criminal court case stemming from this incident is still pending (encl. 24A-24J).

Complainant/Victim Criminal Conviction History

§ 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civil Court Case

A query of the New York City Comptroller's Office on September 25, 2009 indicated that § 87(2)(b) had not filed a Notice of Claim in connection with this incident (encl. 27).

CCRB Histories

Officer David Afanador has had no substantiated allegations during his four year tenure with the NYPD (encl. 2A). Officer Nydia Rodriguez, an officer with five years tenure with the NYPD, has had no substantiated allegations during her tenure with the department (encl. 2B). Sergeant Daniel Zollo, an officer with twelve years tenure with the NYPD, has had only one substantiated allegation of misconduct. ■

§ 87(4-b), § 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(b) has filed no previous complaints with the Civilian Complaint Review Board (encl. 2D). Neither § 87(2)(b) nor § 87(2)(b) has filed any previous complaints with the CCRB (encl. 2E-2F).

Conclusions and Recommendations

Police Officer Identification

§ 87(2)(b) described the subject of Allegation A and Allegation C as a white or Hispanic male, weighing 180 pounds with black hair. Officer David Afanador, a white male, 5'8" in height and weighing 200 pounds with brown hair, affirmed that he pointed his gun at § 87(2)(b) through the windshield of his vehicle and used physical force against him to remove him from his van. § 87(2)(g)
[REDACTED]

In her statement to the CCRB, Officer Nydia Rodriguez, affirmed that she was present for the incident and that she pointed her gun at § 87(2)(b) through the window of his car (Allegation B). Allegation B has therefore been pleaded against her. § 87(2)(b) stated that after § 87(2)(b) had been arrested. A Hispanic female officer with a slim build and dark-colored hair who identified herself as § 87(2)(b) § 87(2)(b)'s arresting officer threatened to arrest her if she did not leave the location (Allegation F). Although Officer Rodriguez, a Hispanic female, 5'7" in height and weighing 145 pounds with black hair, denied that such an interaction occurred. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) referred to Sergeant Zollo by name and described him as an "older" white male, 6'0" in height and weighing 170 pounds. § 87(2)(b) alleged that Sergeant Zollo used his gun to break the front driver's side window of his vehicle, dragged him from his vehicle, and punched him in the head after he had been placed in handcuffs (Allegation D). He also claimed that when he was in a holding cell, Sergeant Zollo called him a "son of a bitch" (Allegation G) and refused to provide him with medical attention (Allegation H). Sergeant Daniel Zollo, a § 87(2)(b) year old white male, 6'0" in height and

weighing 215 pounds, affirmed that he broke the vehicle window. § 87(2)(g)

Approximately four officers responded to the location to assist in subduing and handcuffing § 87(2)(b). § 87(2)(b) alleged that one of the responding officers twisted his foot while another punched him in the head and several officers kicked him as he lay on the ground (Allegation E). Although § 87(2)(b) attributed the foot twisting to a responding officer he could not describe, he indicated that he was uncertain of the identities of the subjects of the punching and kicking as he was unable to see them. None of the interviewed officers could identify the responding officers. § 87(2)(g)

Agreed Facts and Issues in Dispute

All parties agree that on February 11, 2009, at approximately 6:00 p.m., § 87(2)(b) was stopped by Sergeant Zollo, Officer Afanador, and Officer Rodriguez. When § 87(2)(b) moved his car multiple times, Officer Afanador and Officer Rodriguez pointed their guns at § 87(2)(b) through the front windshield of his vehicle (Allegation A and Allegation B). § 87(2)(g)

Although all parties agree that physical force was used against § 87(2)(b) there is no agreement about which officers used force against § 87(2)(b) and what type of force was employed. Although Officer Afanador admitted to using force against § 87(2)(b) he denied § 87(2)(b)'s allegations that he used a gun to strike him on the head or that he used his feet to kick § 87(2)(b) from his van (Allegation C). § 87(2)(b) alleged that Sergeant Zollo dragged him from his van while Sergeant Zollo stated that he did not make physical contact with § 87(2)(b) (Allegation D). § 87(2)(b) further alleged that unidentified officers twisted his leg and punched and kicked him as he lay on the ground (Allegation E), though the interviewed officers maintained that no such force was used against him. There is no agreement about any of the allegations that occurred after § 87(2)(b) was arrested. § 87(2)(b) claimed that Officer Rodriguez threatened to arrest her where as Officer Rodriguez indicated that she never spoke with any civilians at the scene (Allegation F). § 87(2)(b) alleged that Sergeant Zollo spoke with him as he was in the holding cell and spoke discourteously to him (Allegation G) and refused to provide him with medical treatment (Allegation H) whereas Sergeant Zollo indicated that he never spoke with § 87(2)(b) in the cell area. Because key aspects of all of the allegations are in dispute, a review of the evidence will be necessary to assess which account is more credible.

Assessment of Evidence

§ 87(2)(g)
§ 87(2)(b) initially stated that he did not make any attempt to flee the location. However, when asked directly whether he ever placed the van in reverse during the incident, he admitted that he had driven in reverse and attributed this action to a faulty gauge in the vehicle and the fact that he was "scared." § 87(2)(g)

§ 87(2)(b) alleged that after Officer Afanador used a gun to strike him in the face, Sergeant Zollo and Officer Afanador pulled and kicked him from his vehicle. He further alleged that as he lay on the ground outside his vehicle, Sergeant Zollo punched him in the head, Officer Afanador struck him on an unspecified part of his body. Additional officers responded to the incident location and one officer twisted his foot while another punched him in the head and kicked his body. When filing his complaint, § 87(2)(b) reported that he had received medical treatment for internal bleeding. In his CCRB interview, § 87(2)(b) reported that he had sustained lacerations to his face and arms and experienced pain to his upper and lower back. When asked about his initial statement regarding the internal bleeding, § 87(2)(b) affirmed that he had been diagnosed with and treated for this injury. Medical documentation, however, reveals another account. A few hours after the incident, § 87(2)(b) informed medical personnel at Brooklyn Central Booking that he was not sick or injured. § 87(2)(g)

§ 87(2)(g) Four days later, § 87(2)(b) sought medical treatment at the § 87(2)(b) for the back pain. There, he informed medical personnel that glass had been broken in his face during the assault and that he was experiencing bleeding from his rectum. A physical examination revealed only mild tenderness in the right frontal area of his head and contusions to his face, scalp, and back. § 87(2)(b) reported that he had been assaulted, but did not identify his assailant or specify who caused him to sustain the injuries. Further, § 87(2)(b) at one point reported that the assault had occurred on the street and at another time that it had taken place at a police stationhouse. § 87(2)(g)

§ 87(2)(b) identified § 87(2)(b) as a witness to the incident and provided contact information for her. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

All parties agree that Sergeant Zollo broke the front driver's side window of § 87(2)(b)'s vehicle.

§ 87(2)(g)

§ 87(2)(g)

Allegation A) Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer David Afanador pointed his gun at § 87(2)(b)

Allegation B) Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer Nydia Rodriguez pointed her gun at § 87(2)(b)

§ 87(2)(b) after having been stopped in his van by officers, put his vehicle in reverse causing it to move an unspecified distance. Officer Afanador and Officer Rodriguez affirmed that they pointed their guns at § 87(2)(b) through the front windshield of his van and explained that they did so because they believed that § 87(2)(b) had used deadly force against them by attempting to strike them with his vehicle. In OATH case *Police Department v. Steven Gliner* (OATH Index 955/00), Administrative Law Judge upheld Departmental policy which holds that an officer may point his weapon when he has a reasonable fear for his safety, and exonerated allegations of excessive force against an officer who pointed his gun at a motorist that he believed had attempted to strike him with his vehicle (encl. 1A-1E). § 87(2)(g)

§ 87(2)(g)

Allegation C) Force: At Utica Avenue and Eastern Parkway in Brooklyn, Officer David Afanador used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Officer Afanador used his gun to strike him on the head while the officers consistently affirm that no such force was used against him. § 87(2)(g)

§ 87(2)(b) ### ##### alleged that Officer Afanador used his feet to kick him from his van, causing him to fall to the street, and Officer Afanador struck him on an unspecified part of his body an unknown number of times. § 87(2)(g)

§ 87(2)(b) Patrol Guide Procedure 203-11 directs officers to use “only that amount of force necessary to overcome resistance” (encl. 1F-1G). § 87(2)(g)

Allegation D) At Utica Avenue and Eastern Parkway in Brooklyn, Sergeant Daniel Zollo used physical force against § 87(2)(b)

Allegation E) At Utica Avenue and Eastern Parkway in Brooklyn, officers used physical force against § 87(2)(b)

§ 87(2)(b) also claimed that after he had been handcuffed, Sergeant Zollo punched him in the head § 87(2)(b) alleged that when unidentified responding officers arrived, they twisted his foot in an attempt to break his ankle and, punched him in the head, and kicked him as he lay on the ground. § 87(2)(g)

Allegation F) Abuse of Authority: Officer Nydia Rodriguez threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that when she approached Officer Rodriguez to ask her about § 87(2)(b)'s arrest, Officer Rodriguez told her that she would be arrested if she did not leave the location. During a telephone statement on April 10, 2009, § 87(2)(b) indicated that she did not wish to have this allegation investigated and withdrew her complaint; this was reflected in a signed Withdrawal form she returned to the agency (encl. 30F). § 87(2)(g)

Allegation G) Discourtesy: At the 77th Precinct stationhouse, Sergeant Daniel Zollo spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that as he waited in a prisoner holding cell at the 77th Precinct stationhouse, Sergeant Zollo taunted him and told him, “Oh, son of a bitch, you’re not getting no help.” § 87(2)(g)

Allegation H) Abuse of Authority: At the 77th Precinct stationhouse, Sergeant Daniel Zollo did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) claimed that when he told Sergeant Zollo that he needed to see a doctor, Sergeant Zollo ignored his request. § 87(2)(g)

§ 87(2)(b) Additionally, although § 87(2)(b) claimed that he was in need of medical treatment, he informed medical personnel at Brooklyn Central Booking that he was not sick or injured and then sought medical treatment after his release from custody.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: